

Joginder Baberwal & Ors vs The State & Anr on 10 December, 2020

Author: Yogesh Khanna

Bench: Yogesh Khanna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ CRL.M.C. 2426/2020

JOGINDER BABERWAL & ORS.

Through

Mr. Manoj Khatri, Adv

versus

THE STATE & ANR.

Through: Mr.M.S.Oberoi, APP for t

with IO Ajeet Singh Y

CORAM:

HON'BLE MR. JUSTICE YOGESH KHANNA

ORDER

% 10.12.2020

1. The hearing has been conducted through Video Conferencing. Crl.M.A.No.17169
2. Exemption allowed, subject to all just exceptions.
3. The application stands disposed of.
4. This petition is filed for quashing of FIR No. 203/2019, u/s 498A/406/354/34 IPC registered at P.S. Maidan-Garhi, Delhi, and other proceedings arising therefrom.
5. The marriage between petitioner no.1 and respondent No.2 was solemnised on 29.11.2017 according to Hindu rites and ceremonies. No child was born from this wedlock. However, due to matrimonial differences both separated from each other and on the complaint of respondent no. 2, the present FIR was registered besides a complaint under section 12 of the Domestic Violence Act.
6. However, due to the intervention of the family members, the parties have settled their disputes and they have entered into a compromise deed dated 26.07.2020. Admittedly, the divorce has been granted.
7. An amount of Rs. 15 lacs in total has been paid by the petitioners to the respondent no. 2. There is no claim of respondent No.2 against the petitioner and his family members qua maintenance/alimony / istridhan etc.

8. The complainant/respondent No.2 is present along with the Investigating Officer who has duly identified her. The complainant submits she has no objection if the FIR is quashed against the petitioner. The learned APP for the State has also no objection, if this petition is allowed.

9. Considering the above settlement between the parties, there is no justification to proceed with the criminal case as complainant has settled all the disputes with the petitioner.

10. Accordingly, the petition is allowed. Consequently, FIR No. 203/2019, u/s 498A/406/354/34 IPC registered at P.S. Maidan-Garhi, Delhi, and the proceedings emanating therefrom are quashed. Pending application, if any, also stands disposed of.

YOGESH KHANNA, J.

DECEMBER 10, 2020 neha